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To: Mark Dosen, Tish Kwiatkowski, Ellen Kramer, Kathleen Mack, and Brittany Wigman

From: Kyle A. Wheeler, Esq.

Re: Ethics Laws Memorandum

Date: February 28, 2023

I. Introduction

This memorandum is intended to provide a general overview of Ohio's Ethics Laws and Board Policies concerning the restrictions and/or limitations placed on the actions and authority of a Board Member whose brother-in-law is employed by the District as a coach on a supplemental contract, which is a specific issue that was recently addressed by the Board. Additionally, this memorandum can be a resource for the Board regarding other "family-hire" issues/restrictions, although I remain available to answer specific questions that may arise in the future.

II. Current Law

Generally speaking, Revised Code ("R.C.") section 102.03 of the Ohio Ethics Laws works in conjunction with R.C. § 2921.42 to prohibit public officials from using their official positions for their own personal benefit or for the benefit of family members. In broad terms, the nepotism or "family-hire" restrictions contained in R.C. § 102.03(D) and (E) and R.C. § 2921.42(A)(1) as outlined more fully below, prohibit a Board member from hiring any of their family members; voting to authorize the employment of a family member; or recommending, nominating, or using their positions in any way to secure a job for a family member.

a. Conflict-of-Interest Restrictions

Specifically, R.C. § 102.03(D) and (E) provide that:

(D) No public official or employee shall use or authorize the use of the authority or influence of office or employment to secure anything of value or the promise or offer of anything of value that is of such character as to manifest a substantial and

improper influence upon the public official or employee with respect to that person's duties.

(E) No public official or employee shall solicit or accept anything of value that is of such a character as to manifest a substantial and improper influence upon the public official or employee with respect to that person's duties.

Sections 102.03(D) and (E) of the Revised Code apply to any person who is elected to or appointed to any public agency, including members of a school district board of education. See R.C. § 102.01(B). Further, the Ohio Ethics Commission (the "Commission") has determined that employment and accompanying compensation and benefits falls within the meaning of "anything of value." Adv. Op. No. 92-012. The Commission has also stated a thing of value manifests a "substantial and improper influence" on a public official or employee if it could impair the official's or employee's objectivity and independence of judgment with respect to his or her public duties. Adv. Ops. No. 91-010; 95-001.

As a result, the Commission has stated that voting on, recommending, deliberating, discussing, lobbying, or taking any other formal or informal action within the scope of a public official's or employee's public authority is "use of", or "authorization of the use of" the authority or influence of a public official's or employee's office or employment. Adv. Op. No. 88-005. Therefore, any such conduct related to the hiring of a **family member** may result in a violation of Ohio's Ethics Laws. The scope of the definition of "family member" is addressed below, and is central to understanding this restriction.

b. Public Contract Restrictions

In addition to the conflict-of-interest prohibitions outlined above, section 2921.42 of the Revised Code contains restrictions related to public contracts. In pertinent part, R.C. § 2921.42(A)(1) provides that no public official shall:

Authorize, or employ the authority or influence of the public official's office to secure authorization of any public contract in which the public official, a member of the public official's family, or any of the public official's business associates has an interest.

The Ethics Commission has issued numerous opinions holding that R.C. § 2921.42(A)(1) prohibits a public official from voting, discussing, deliberating, recommending, lobbying other officials and employees, or taking any other action to authorize, or secure the authorization of, any public contract, including a public job, for a **family member**. See Adv. Ops. No. 92-012, 97-004, and 98-004. Again, the scope of the definition of "family member" is addressed below.

c. Family Member Defined



With that being said, the Commission has also stated that R.C. § 102.03(D) and (E) and R.C. § 2921.42(A)(1) do not create a “no-relatives” policy. Adv. Op. No. 90-010. In fact, the Commission has defined a member of the public official’s family as: 1) grandparents; 2) parents; 3) spouse; 4) children, whether dependent or not; 5) grandchildren; 6) brothers and sisters; or 7) **any person related by blood or marriage and residing in the same household**.

Ohio courts have cited this definition while also concluding that, “[t]he law of Ohio does not prohibit public officials from hiring a brother-in-law unless such relative resided with the public official in question.” See *Baynard v. Oakwood Village*, (Oct. 16, 1997), 8th Dist. App. No. 71711, 15-18.

This definition is also consistent with Board Policy 0141.2 – *Conflict of Interest*, which also prohibits a Board member from “being involved in any aspect of the hiring process including, but not limited to, discussing, deliberation, interviewing, or voting on a contract with that person as a teacher or instructor if s/he is related to that person as a spouse, father, mother, step-parent, brother, sister, minor child, step-child, grandparent, grandchild, **or any other person related by blood or marriage that resides in the same household as the Board member**.”

Therefore, the general nepotism restrictions contained in R.C. § 2921.42(A)(1) and R.C. § 102.03(D) and (E), and Board Policy 0141.2 do not prohibit a board member from voting, discussing, deliberating, lobbying, or otherwise taking action to secure or authorize the contract of a Board member’s brother-in-law, so long as the brother-in-law does not reside with the Board member.

III. Conclusion

In conclusion, a Board member must not use or authorize the use of the authority or influence of his/her office to secure the employment contract of a family member employed by the District. See R.C. § 102.03(D) and (E); R.C. § 2921.42(A)(1); Board Policy 0141.2. For purposes of Board Policy and Ohio’s Ethics Laws, a Board member’s brother-in-law does not fall within the meaning of a “family member” unless the brother-in-law lives with the Board member. So long as the brother-in-law does not live with the Board member, a Board member may vote, discuss, deliberate, or otherwise take action to secure or authorize the brother-in-law’s employment contract with the District.

IV. Practical Considerations

While a Board member is not prohibited from voting or otherwise taking action to secure the employment contract of his/her brother-in-law, Board policy also addresses the interest in avoiding the appearance of a conflict of interest. Specifically, Board Policy 0123 – *Code of Ethics/Code of Conduct*, states that each member of the Board is expected to “avoid conflicts of interest **or the appearance thereof**.”

Thus, though a Board member would be able to vote or otherwise secure the employment contract of his/her brother-in-law without violating Ohio's Ethics Laws, doing so may lead to the appearance of a conflict of interest. Therefore, pursuant to Board Policy 0123, the Board would want to consider exploring viable options to allow the Board member to abstain from voting on the employment contract of his/her brother-in-law.

Sincerely,

Kyle A. Wheeler, Esq.

